

COMMITTEE ON JUDICIARY AND ELECTIONS
SENATE AMENDMENTS TO S.B. 1244
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 36-504.01, Arizona Revised Statutes, is amended
3 to read:

4 36-504.01. Guardians and agents; rights in proceedings

5 Guardians and agents who have decisional authority to make personal,
6 medical and treatment decisions for a patient pursuant to an order of the
7 court or pursuant to a validly executed mental health power of attorney in
8 which the principal has been found incapable of giving informed consent
9 have the following rights in any proceedings under this article regarding
10 involuntary treatment of the patient:

11 1. To be notified of any petition for treatment, motion for amended
12 court order, application for ~~continued court ordered~~ RENEWAL OF THE COURT
13 ORDER FOR treatment, APPLICATION FOR CONVERSION TO AN ORDER FOR CONTINUING
14 COURT-ORDERED TREATMENT and request for judicial review.

15 2. If allowed by the court, to provide the court with the
16 guardian's or agent's position regarding the relief being sought in any of
17 the proceedings set forth in paragraph 1 of this section and to provide
18 the court with any relevant information to help the court make a
19 determination.

20 3. To provide relevant information to any agency providing
21 inpatient or outpatient screening, evaluation or treatment to the patient.

22 4. When appropriate, to participate in treatment and discharge
23 planning with the inpatient or outpatient treatment providers.

24 Sec. 2. Section 36-542, Arizona Revised Statutes, is amended to
25 read:

26 36-542. Discharge of patient at expiration of period ordered
27 by court; change to voluntary status; immunity

1 A. A patient WHO IS ordered by a court to undergo treatment
2 pursuant to this article shall be discharged from treatment at the
3 expiration of the period of treatment ordered unless one of the following
4 occurs:

5 1. The person accepts voluntary treatment at the mental health
6 treatment agency.

7 2. Before the discharge date, a new petition is filed in the county
8 in which the patient is being treated. The proceedings shall then be
9 governed by this article. The costs of the proceedings shall be a charge
10 against the county in which the patient resided or was found prior to
11 hospitalization.

12 3. An application for ~~continued court-ordered~~ RENEWAL OF THE COURT
13 ORDER FOR treatment is granted pursuant to section 36-543.

14 4. AN APPLICATION FOR CONVERSION TO AN ORDER FOR CONTINUING
15 COURT-ORDERED TREATMENT IS GRANTED PURSUANT TO SECTION 36-543.01.

16 B. If a patient to be discharged is under guardianship, the medical
17 director of the mental health treatment agency shall notify the guardian
18 ten days before discharge.

19 C. If a patient to be discharged is undergoing court-ordered
20 treatment as a result of a petition filed by a prosecutor pursuant to
21 section 13-4517 and the patient is being discharged because the medical
22 director OF THE MENTAL HEALTH TREATMENT AGENCY has decided not to file a
23 new petition for court-ordered evaluation or treatment or has decided not
24 to request the court to order that the previous order for treatment be
25 ~~continued~~ RENEWED, the patient may not be discharged or released from
26 treatment before compliance with section 36-541.01.

27 D. The medical director OF THE MENTAL HEALTH TREATMENT AGENCY is
28 not civilly liable for any acts committed by a released or discharged
29 patient if the medical director OF THE MENTAL HEALTH TREATMENT AGENCY has
30 in good faith followed the requirements of this article.

31 Sec. 3. Section 36-543, Arizona Revised Statutes, is amended to
32 read:

33 36-543. Annual review; patients with a grave disability or a
34 persistent or acute disability; notice; renewal of
35 court order for treatment; rules; immunity

36 A. Within ninety days before the expiration of a court order for
37 treatment, the medical director of the mental health treatment agency
38 shall conduct an annual review of a patient who has been found to have a
39 grave disability or a persistent or acute disability and who is undergoing
40 court-ordered treatment to determine whether the ~~continuation of~~
41 ~~court-ordered~~ RENEWAL OF THE COURT ORDER FOR treatment is appropriate and
42 to assess the needs of the patient for guardianship or conservatorship, or
43 both. The annual review shall consist of the mental health treatment and
44 clinical records contained in the patient's treatment file. The mental
45 health treatment agency shall keep a record of the annual review. If the
46 medical director OF THE MENTAL HEALTH TREATMENT AGENCY believes that a
47 ~~continuation of court-ordered~~ RENEWAL OF THE COURT ORDER FOR treatment is
48 appropriate, the medical director of the mental health treatment agency

1 shall appoint one or more psychiatrists to carry out a psychiatric
2 examination of the patient. In any proceeding conducted pursuant to this
3 section, a patient has the right to have an analysis of the patient's
4 mental condition by an independent evaluation pursuant to section 36-538.

5 B. Each examiner participating in the psychiatric examination of
6 the patient shall submit a report to the medical director of the mental
7 health treatment agency that includes the following:

8 1. The examiner's opinions as to whether the patient continues to
9 have a grave disability or a persistent or acute disability as the result
10 of a mental disorder and be in need of ~~continued court-ordered~~ RENEWAL OF
11 THE COURT ORDER FOR treatment. In evaluating the patient's need for
12 ~~continued court-ordered~~ RENEWAL OF THE COURT ORDER FOR treatment, the
13 examiner must consider, along with all other evidence, the patient's
14 history before and during the current period of court-ordered treatment,
15 the patient's compliance with recommended treatment and any other evidence
16 relevant to the patient's ability and willingness to follow recommended
17 treatment with or without a court order.

18 2. A statement as to whether suitable alternatives to court-ordered
19 treatment are available.

20 3. A statement as to whether voluntary treatment would be
21 appropriate.

22 4. A review of the patient's status as to guardianship or
23 conservatorship, or both, the adequacy of existing protections of the
24 patient and the continued need for guardianship or conservatorship, or
25 both. If the examiner concludes that the patient's needs in these areas
26 are not being adequately met, the examiner's report shall recommend that
27 the court order an investigation into the patient's needs.

28 5. If the patient has an existing guardian who does not have the
29 mental health powers authorized pursuant to section 14-5312.01, a
30 recommendation as to whether the additional mental health powers
31 authorized by section 14-5312.01 should be imposed on the existing
32 guardian and whether the patient's needs can be adequately addressed by a
33 guardian with mental health powers without the need for a court order for
34 treatment or whether the court order for treatment should continue
35 regardless of the additional mental health powers imposed on the guardian.

36 6. The results of any physical examination conducted during the
37 period of court-ordered treatment if relevant to the psychiatric condition
38 of the patient.

39 C. After conducting the annual review as prescribed in this
40 section, if the medical director OF THE MENTAL HEALTH TREATMENT AGENCY
41 believes that ~~continued court-ordered~~ RENEWAL OF THE COURT ORDER FOR
42 treatment is necessary or appropriate, not later than thirty days before
43 the expiration of the court order for treatment, the medical director OF
44 THE MENTAL HEALTH TREATMENT AGENCY shall file with the court an
45 application for ~~continued court-ordered~~ RENEWAL OF THE COURT ORDER FOR
46 treatment alleging the basis for the application and shall file
47 simultaneously with the application any psychiatric examination conducted
48 as part of the annual review. If the patient is under guardianship, the

1 medical director OF THE MENTAL HEALTH TREATMENT AGENCY shall mail a copy
2 of the application to the patient's guardian.

3 D. If an application for ~~continued court-ordered~~ RENEWAL OF THE
4 COURT ORDER FOR treatment is filed, all of the following apply:

5 1. If the patient does not have an attorney, the court shall
6 appoint an attorney to represent the patient.

7 2. Within ten days after appointment, an attorney appointed
8 pursuant to this subsection, to the extent possible, shall fulfill the
9 duties imposed pursuant to section 36-537, review the ~~medical director's~~
10 report OF THE MEDICAL DIRECTOR OF THE MENTAL HEALTH TREATMENT AGENCY and
11 the patient's medical records, interview any physician who prepared a
12 report on the annual review and file a response requesting a hearing or
13 submitting the matter to the court for a ruling based on the record
14 without a hearing.

15 3. If a hearing is not requested, the court shall rule on the
16 application or set the matter for hearing. If a hearing is requested, the
17 hearing shall be held within three weeks after the request for hearing is
18 filed. The hearing may be continued for good cause on motion of a party
19 or on the court's own motion, and the expiration of the current court
20 order for treatment may be extended until a ruling by the court on an
21 application filed pursuant to this subsection.

22 4. The patient's attorney must be present at all hearings and may
23 subpoena and cross-examine witnesses and present evidence. The patient
24 has the right to attend all hearings, but may choose not to attend a
25 hearing. The patient's attorney may waive the patient's presence after
26 speaking with the patient and confirming that the patient understands the
27 right to be present and does not desire to attend. If the patient is
28 unable to be present at the hearing for medical or psychiatric reasons and
29 the hearing cannot be conducted where the patient is being treated or
30 confined, or the patient cannot appear by another reasonably feasible
31 means, the court shall require clear and convincing evidence that the
32 patient is unable to be present at the hearing and on such a finding may
33 proceed with the hearing in the patient's absence.

34 5. The evidence presented by the applicant includes the testimony
35 of one or more witnesses acquainted with the patient during the period of
36 court-ordered treatment, which may be satisfied by a statement agreed on
37 by the parties, and the testimony of any physician who performed an annual
38 review of the patient, which may be satisfied by stipulating to the
39 admission of the examining physicians' written report prepared pursuant to
40 subsection B of this section. The court may waive the need for the
41 applicant to present the testimony of witnesses acquainted with the
42 patient as required by this subsection, if it finds that the need for a
43 ~~continued~~ RENEWAL OF THE court order for treatment has been established by
44 clear and convincing evidence from the other testimony and evidence
45 presented at the hearing.

46 6. At a hearing held pursuant to this subsection, the court, with
47 notice, may impose on an existing guardian additional powers pursuant to
48 section 14-5312.01. If the court finds that the patient's needs can be

1 adequately met by an existing guardian with the additional powers pursuant
2 to section 14-5312.01 and that a court order for treatment is not
3 necessary to ensure compliance with necessary treatment, the court may
4 terminate the court order for treatment or decline to issue an order
5 ~~continuing court-ordered~~ FOR RENEWAL OF THE COURT ORDER FOR treatment.
6 The court may also order an investigation into the need for guardianship
7 or conservatorship, or both, and may appoint a suitable person or agency
8 to conduct the investigation. The appointee may include a court-appointed
9 guardian ad litem, a court-appointed investigator pursuant to section
10 14-5308 or the public fiduciary if there is no person willing and
11 qualified to act in that capacity. The court shall give notice of the
12 appointment to the appointee within three days after the appointment. The
13 appointee shall submit the report of the investigation to the court within
14 twenty-one days. The report shall include recommendations as to who
15 should be guardian or conservator, or both, and the findings and reasons
16 for the recommendation. If the investigation and report so indicate, the
17 court may authorize an appropriate person to file a petition for
18 appointment of a guardian or conservator for the patient.

19 E. If a hearing is held pursuant to subsection D of this section,
20 the party seeking the renewal of the court order FOR TREATMENT must prove
21 all of the following by clear and convincing evidence:

22 1. The patient continues to have a mental disorder and, as a result
23 of that disorder, has either a persistent or acute disability or a grave
24 disability.

25 2. The patient is in need of ~~continued court-ordered~~ RENEWAL OF THE
26 COURT ORDER FOR treatment.

27 3. The patient is either unwilling or unable to accept treatment
28 voluntarily.

29 F. After a hearing held pursuant to subsection D of this section,
30 the court may order the patient to be released from court-ordered
31 treatment or to ~~undergo continued court-ordered~~ RENEW THE COURT ORDER FOR
32 treatment for a period not to exceed the time periods prescribed in
33 section 36-540, subsection D.

34 G. The director shall create and operate a program to ensure that
35 the examination and review of persons with grave disabilities or
36 persistent or acute disabilities under court order are carried out in an
37 effective and timely manner. The director shall adopt rules needed to
38 operate this program.

39 H. The medical director of the mental health treatment agency is
40 not civilly liable for any acts committed by the released patient if the
41 medical director OF THE MENTAL HEALTH TREATMENT AGENCY has in good faith
42 complied with the requirements of this article.

43 Sec. 4. Title 36, chapter 5, article 5, Arizona Revised Statutes,
44 is amended by adding section 36-543.01, to read:

45 36-543.01. Continuing court-ordered treatment; annual review;
46 order for conversion; annual report; burden of
47 proof

1 A. AFTER CONDUCTING A PATIENT'S SECOND CONSECUTIVE ANNUAL REVIEW AS
2 PRESCRIBED IN SECTION 36-543, SUBSECTION A, IF THE MEDICAL DIRECTOR OF THE
3 MENTAL HEALTH TREATMENT AGENCY BELIEVES THAT AN ORDER FOR CONTINUING
4 COURT-ORDERED TREATMENT IS APPROPRIATE, THE MEDICAL DIRECTOR OF THE MENTAL
5 HEALTH TREATMENT AGENCY SHALL APPOINT AN APPROPRIATE MEDICAL PROFESSIONAL
6 TO CARRY OUT A PSYCHIATRIC EXAMINATION OF THE PATIENT AND SUBMIT A REPORT
7 AS SET FORTH IN SECTION 36-543 AND SHALL REQUEST THE EXAMINER TO PROVIDE
8 AN OPINION ABOUT THE ISSUES SET FORTH IN SUBSECTION D OF THIS SECTION IN
9 ADDITION TO THE REPORTING REQUIREMENTS PRESCRIBED IN SECTION 36-543,
10 SUBSECTION B.

11 B. AFTER RECEIVING THE REPORT PURSUANT TO SUBSECTION A OF THIS
12 SECTION, IF THE MEDICAL DIRECTOR OF THE MENTAL HEALTH TREATMENT AGENCY
13 BELIEVES THAT AN ORDER FOR CONTINUING COURT-ORDERED TREATMENT IS
14 APPROPRIATE, AT LEAST THIRTY DAYS BEFORE THE EXPIRATION OF THE COURT ORDER
15 FOR TREATMENT, THE MEDICAL DIRECTOR OF THE MENTAL HEALTH TREATMENT AGENCY
16 SHALL FILE WITH THE COURT AN APPLICATION FOR A CONVERSION TO AN ORDER FOR
17 CONTINUING COURT-ORDERED TREATMENT ALLEGING THE BASIS FOR THE APPLICATION
18 AND SHALL FILE SIMULTANEOUSLY WITH THE APPLICATION ANY REPORT FROM A
19 PSYCHIATRIC EXAMINATION PERFORMED AS PART OF THE ANNUAL REVIEW CONDUCTED
20 PURSUANT TO SECTION 36-543, SUBSECTION A. A COPY OF THE APPLICATION SHALL
21 BE PROVIDED TO THE PATIENT AND THE PATIENT'S ATTORNEY AND, IF THE PATIENT
22 IS UNDER GUARDIANSHIP, TO THE PATIENT'S GUARDIAN.

23 C. SECTION 36-543, SUBSECTION D APPLIES TO PROCEEDINGS FOR
24 CONVERSION TO AN ORDER FOR CONTINUING COURT-ORDERED TREATMENT.

25 D. A COURT ORDER FOR TREATMENT MAY BE CONVERTED TO AN ORDER FOR
26 CONTINUING COURT-ORDERED TREATMENT AS SET FORTH IN THIS SECTION IF THE
27 COURT FINDS ALL THE FOLLOWING BY CLEAR AND CONVINCING EVIDENCE:

28 1. THE PATIENT CONTINUES TO HAVE A MENTAL DISORDER AND, AS A RESULT
29 OF THAT DISORDER, HAS EITHER A PERSISTENT OR ACUTE DISABILITY OR A GRAVE
30 DISABILITY.

31 2. THE PATIENT IS EITHER UNWILLING OR UNABLE TO ACCEPT TREATMENT
32 VOLUNTARILY.

33 3. WITHOUT AN ORDER FOR CONTINUING COURT-ORDERED TREATMENT THE
34 PATIENT'S CONDITION IS NOT LIKELY TO SIGNIFICANTLY IMPROVE AND THERE IS A
35 SUBSTANTIAL PROBABILITY THAT THE PATIENT WILL SUFFER SEVERE AND ABNORMAL
36 MENTAL, EMOTIONAL OR PHYSICAL HARM OR BE UNABLE TO PROVIDE FOR THE
37 PATIENT'S OWN BASIC PHYSICAL NEEDS.

38 E. IF THE APPLICATION FOR CONVERSION TO AN ORDER FOR CONTINUING
39 COURT-ORDERED TREATMENT IS DENIED, THE COURT MAY ORDER THE PATIENT TO BE
40 RELEASED FROM COURT-ORDERED TREATMENT OR, IF THE PROVISIONS OF SECTION
41 36-543, SUBSECTION E HAVE BEEN MET, ORDER THAT THE COURT ORDER FOR
42 TREATMENT BE RENEWED FOR A PERIOD OF NOT MORE THAN THE TIME PERIODS
43 PRESCRIBED IN SECTION 36-540, SUBSECTION D.

44 F. IF THE APPLICATION FOR CONVERSION TO AN ORDER FOR CONTINUING
45 COURT-ORDERED TREATMENT IS GRANTED, THE COURT SHALL ORDER THE PATIENT TO
46 CONTINUE IN TREATMENT UNTIL THE ORDER FOR CONTINUING COURT-ORDERED
47 TREATMENT IS TERMINATED BY THE COURT. THE MAXIMUM PERIODS FOR INPATIENT
48 TREATMENT THAT A COURT MAY ORDER PURSUANT TO SECTION 36-540, SUBSECTION F

1 DO NOT APPLY TO AN ORDER FOR CONTINUING COURT-ORDERED TREATMENT ISSUED
2 PURSUANT TO THIS SECTION.

3 G. THE ANNUAL REVIEW OF THE ORDER FOR CONTINUING COURT-ORDERED
4 TREATMENT SHALL OCCUR AT LEAST THIRTY DAYS BEFORE THE ANNIVERSARY DATE OF
5 THE ORDER FOR CONTINUING COURT-ORDERED TREATMENT. THE MEDICAL DIRECTOR OF
6 THE MENTAL HEALTH TREATMENT AGENCY SHALL FILE A WRITTEN ANNUAL REPORT TO
7 THE COURT THAT INCLUDES THE FOLLOWING:

8 1. AN EXAMINATION REPORT BY A PSYCHIATRIST OR PSYCHOLOGIST ~~[OR, IN~~
9 ~~A COUNTY WITH A POPULATION OF LESS THAN FIVE HUNDRED THOUSAND PERSONS, BY~~
10 ~~A PHYSICIAN, PHYSICIAN ASSISTANT OR NURSE PRACTITIONER EXPERIENCED IN~~
11 ~~PSYCHIATRIC MATTERS]~~ WHO HAS REVIEWED THE TREATMENT RECORDS OF THE PATIENT
12 AND WHO HAS CONDUCTED AN EXAMINATION OF THE PATIENT WITHIN NINETY DAYS
13 BEFORE THE ANNIVERSARY DATE OF THE ORDER FOR CONTINUING COURT-ORDERED
14 TREATMENT.

15 2. A SUMMARY OF THE EXAMINER'S OBSERVATIONS OF THE PATIENT'S
16 PHYSICAL AND MENTAL CONDITION AND OF THE SERVICES PROVIDED OVER THE PERIOD
17 SINCE THE LAST ANNUAL REPORT.

18 3. THE OPINION OF THE EXAMINER AS TO WHETHER AN ORDER FOR
19 CONTINUING COURT-ORDERED TREATMENT SHOULD REMAIN IN PLACE.

20 H. IF THE ANNUAL REPORT SUPPORTS THE CONTINUATION OF THE COURT
21 ORDER FOR TREATMENT, THE COURT MAY ORDER THAT THE ORDER FOR CONTINUING
22 COURT-ORDERED TREATMENT REMAIN IN PLACE. THE PATIENT MAY OBJECT TO THE
23 ORDER FOR CONTINUING COURT-ORDERED TREATMENT BY FILING A REQUEST FOR
24 HEARING WITHIN TEN BUSINESS DAYS AFTER THE ANNUAL REPORT IS FILED. THE
25 COURT SHALL HOLD THIS HEARING WITHIN THIRTY CALENDAR DAYS AFTER RECEIPT OF
26 THE REQUEST. TREATMENT PURSUANT TO THE EXISTING COURT ORDER SHALL
27 CONTINUE PENDING THE COURT'S RULING ON THE ISSUE. AT THE HEARING, THE
28 PATIENT HAS THE BURDEN OF PROVING BY CLEAR AND CONVINCING EVIDENCE THAT
29 THE PATIENT NO LONGER MEETS THE CRITERIA FOR AN ORDER FOR CONTINUING
30 COURT-ORDERED TREATMENT PURSUANT TO THIS SECTION.

31 Enroll and engross to conform
32 Amend title to conform

1244JUDE.docx
01/27/2026
12:00 PM
S: ZD/KS/ci
130ADHWAY